

Fear, Disappointment AND ANGER

The day Justice Liberhan Commission report along with Government's Action Taken Report (ATR) was tabled in Parliament, Najmul Hasan Ghani, 68-year-old Faizabad-based homoeopath and Uttar Pradesh President of Indian Muslim League, appeared shaken and angry. "Why did the Commission take so long? And then why there is no action recommended against those guilty?" Ghani is not the only Muslim leader who fears the return of the Ayodhya ghost that had cost 1,700 lives and left some 5,500 wounded in the mayhem that engulfed the country for four days after the demolition. Jamaat-e-Islami Hind's state president Mohammad Ahmad says the report and ATR have created anger and disappointment. "Even after spending Rs 8 crore from public exchequer spread over 17 years and 48 extensions, the result is zero."

In fact, what has disappointed the community most was not the report itself but the ATR that did not reveal any action to be taken against the guilty men of Ayodhya and the rioters. "Remember if Muslims can reject 'Maulvi' Mulayam Singh Yadav because of his association with Kalyan Singh, they can once again be ruthless with the Congress," says Umar Peerzada, national convener of Aligarh Movement Foundation. But what has really shaken Muslim leaders was the sweeping indictment of the "fanatical Muslims leadership" during Ram Janmabhoomi-Babri Masjid movement. The report said: "While the RSS, VHP, Shiv Sena, Bajrang Dal and the BJP brought the temple movement to the front burner, the fanatic Muslim leadership making the counterclaim were either completely complacent and had no substantial or effective leadership or were simply incompetent." Syed Shahabuddin, convener of the All India Babri

Action Committee (AIBMC), wonders why the then prime minister P.V. Narasimha Rao, "the super villain in this case", was exonerated. "It's a blunder," he says. Convenor of All India Babri Masjid Action Committee (AIBMAC), Zafaryab Jilani, says, "People in general and Muslims in particular are bound to put the government in the dock."

With Muslims once again upset with the Congress over the ATR and Mulayam struggling hard to find ways to return to his former 'Maulvi' avatar, it's only Mayawati who hopes to exploit the Muslim sentiment. The ghost of Ayodhya will continue to haunt the Congress, and now Mulayam's Samajwadi Party, for some time.

by Farzand Ahmed

Lost in the LEGAL MAZE

The political agenda may be chock full of the Liberhan report, but it does not seem to pose any tangible legal threats to those indicted. The report does not recommend any action against L.K. Advani, Murli Manohar Joshi and other leaders though it holds them "culpable" for bringing down the mosque at Ayodhya. The UPA Government also seems to be in no mood to press more charges against those named. The Government in its ATR doesn't name any individual against whom fresh action needs to be taken for the demolition of the Babri mosque. All it says is that existing cases in special courts will be expedited.

The CBI had filed a composite charge-sheet in the special court against Advani and others. The special CBI court later absolved Advani, but found grounds to proceed against the seven others in the criminal conspiracy case, including Joshi, Uma Bharati, Vinay Katiyar and VHP leader Ashok Singhal. Even if the Government wants to bring in more charges against those named in the report, any action against any person indicted can come only after sufficient

Expensive Exercise

- Constituted on: December 16, 1992
- Deadline: Three months but final report was submitted on June 30, 2009.
- Sittings: 399
- Witnesses: 99
- Extensions: 48 (18 for six months, 25 for three months and five for two months)
- Expenses: Over Rs 8 crore (Rs 7.47 crore till 2007)
- It was assigned to inquire into:
 1. The sequence of events leading to, and all the facts and circumstances relating to, occurrence in the Ram Janmabhoomi-Babri Masjid complex at Ayodhya on December 6, 1992, involving destruction of the structure.
 2. The role played by the chief minister, members of the council of ministers, officials of the government of Uttar Pradesh and by the individuals, concerned organisations and agencies in, or in connection with, the destruction of the disputed structure.
 3. The deficiency in the security measures and other arrangements as prescribed or operated in practice by the Uttar Pradesh government which might have



JUSTICE M.S. LIBERHAN PRESENTING THE REPORT TO PRIME MINISTER MANMOHAN SINGH AND HOME MINISTER P. CHIDAMBARAM

contributed to the events that took place in the complex on December 6, 1992.

4. The sequence of events leading to, all the facts and circumstances

relating to and the assault on mediapersons at Ayodhya on December 6, 1992.

5. Any other matter related to the subject of inquiry.